

IN THE HONOURABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA,
SITTING IN ITS OCTOBER TERM, A. D. 2025.

BEFORE HER HONOR: YAMIE QUIQUI GBEISAY, SR CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE ASSOCIATE JUSTICE
BEFORE HIS HONOR : YUSSIF D. KABA ASSOCIATE JUSTICE
BEFORE HIS HONOR : CEANEH D. CLINTON-JOHNSON ASSOCIATE JUSTICE
BEFORE HER HONOR: BOAKAI N. KANNEH..... ASSOCIATE JUSTICE

Patrick Vision Inc. represented by and thru its
Chief Executive Officer, Mr. Nyangabu Patrick,
of the City of Monrovia, Liberia Appellant

Versus

Appeal

Arcelor Mittal Liberia (AML) represented by and
thru its Executive Officer, Managing Director,
Operation Manager and all other authorities of
the AML, of the City of Monrovia, Liberia
..... Appellee

GROWING OUT OF THE CASE:

Arcelor Mittal Liberia (AML) represented by and
thru its Executive Officer, Managing Director,
Operation Manager and all other authorities of
the AML, of the City of Monrovia, Liberia
..... Movant

Motion to Dismiss

Versus

Patrick Vision Inc. represented by and thru its
Chief Executive Officer, Mr. Nyangabu Patrick,
of the City of Monrovia, Liberia Respondent

GROWING OUT OF THE CASE:

Patrick Vision Inc. represented by and thru its
Chief Executive Officer, Mr. Nyangabu Patrick,
of the City of Monrovia, Liberia Plaintiff

Versus

Action of Damages
for Wrong

Arcelor Mittal Liberia (AML) represented by and
thru its Executive Officer, Managing Director,
Operation Manager and all other authorities of
the AML, of the City of Monrovia, Liberia
..... Defendant

Heard: November 10, 2025

Decided: December 18, 2025

MR. JUSTICE KABA DELIVERED THE OPINION OF THE COURT.

The appellant, Patrick Vision Inc., filed an action of damages for wrong
against ArcelorMittal Liberia, represented by its Chief Executive Officer,

Managing Director, and others, as appellee, before the Sixth Judicial Circuit, Civil Law Court. In its complaint, the appellant alleged that it entered into a rental agreement for its trucks and equipment with the appellee based on the appellee securing a duty-free exemption. The appellee applied for and received approval from the Government of Liberia to import the appellant's trucks and machinery. The appellant repeatedly reminded the appellee that it holds only possessory titles to the trucks and equipment, except for a Caterpillar/Bulldozer and an excavator. The appellant further claimed that during the execution of the agreement, the appellee egregiously breached several terms, engaged in self-help actions, and, at times beyond its authority, damaged many of the appellant's trucks and equipment by using poor-quality fuel, doubling the taxes on the fuel supplied, withholding the appellant's service hours by unjustified discounts, and ultimately, after unlawfully seizing the trucks and equipment, dismantling all of them. The appellant stated that the fuel supplied by Total, Liberia, to its trucks and equipment caused extensive damage. The appellant further averred that after the damages were reported to the appellee, an investigation revealed that Total, Liberia, supplied bad fuel that damaged both the appellant's and the appellee's equipment; that consequently Total, Liberia, paid significant damages to the appellee for the harm caused, but the appellee failed to repair the damages inflicted by the bad fuel on the appellant's equipment; that furthermore, the appellee dismantled and completely damaged the appellant's trucks and equipment while they were in its possession following seizure; that additionally, the appellee unlawfully seized and took possession of all of the appellant's trucks, valued at over US\$3,000,000.00, without any legal right, permission, or authority; and that these actions on the part of the appellee put the appellant in a position of mistrust with its partner, the truck owner, Scania Group, who now demands the return of all trucks in working condition and compensation for income lost due to the illegal seizure. The appellant therefore prays that the court award US\$3,000,000 for the wrongful acts committed by the appellee and US\$2,000,000 in punitive damages.

The appellee filed a general denial answer, then withdrew it and submitted an amended answer. In the amended answer, the appellee argued that

clause (33) of the rental agreement between the parties states that "all disputes, controversies, or claims arising out of or in connection with this agreement shall be finally settled under the rules of Arbitration of the International Chamber of Commerce in London..."; that no law or court should interfere with the parties' understanding, as courts are constitutionally obligated to uphold the sanctity and validity of contracts. The appellee contended that the contract requires the appellant to provide security personnel to protect the contractor's equipment and that the appellee shall not be liable for theft or damage to the appellant's equipment. The appellant waives any right to claim against the appellee in the event of theft or damage. The appellee further stated that it requested, and the Government of Liberia, through the Liberia Revenue Authority (LRA), granted permission for the temporary import of thirty (30) dump trucks by road from Guinea for ninety (90) days. The appellant owns some of the trucks and earth-moving equipment used by the appellant. The appellee also claimed that the appellant was required to provide thirty (30) haul trucks during the agreement and its amendments. In 2021, the appellant requested, by letter, that the appellee allow its subcontractor, STARTA Trucking Inc., to remove ten (10) trucks from the concession area after the agreement was terminated. The appellee maintained that it did not engage in self-help or cause any damage to the appellant's trucks and equipment by allegedly supplying poor-quality fuel. The fuel in question was procured by the appellee from TOTAL, now CONEX, both reputable petroleum importers, suppliers, and dealers in Liberia. The appellant's service was penalized under the service agreement for poor performance, and the appellee warned it for failing to meet targets due to inadequate supervision and a lack of cash flow for maintenance and repairs. The appellee did not lay siege to or dismantle the appellant's equipment. It also did not permit the appellant to immediately recover its trucks, as the appellant was financially obligated to cover costs such as food bills, security bills from SEGAL, and workers' salaries occupying AML facilities. At no point did the appellee investigate the fuel quality or the cause of the truck's fuel pump failure. The appellee requests that the appellant's claim be dismissed in its entirety.

Along with its amended answer, the appellee filed a motion to dismiss the appellant's complaint, arguing that the trial court lacks jurisdiction to hear the case on the merits due to an arbitration clause in the agreement signed by the parties. This agreement, at clause 33, states that "all disputes, controversy or claims arising out of or in connection with this Agreement shall be finally settled under the Rules of Arbitration of the International Chamber of Commerce in London..."; and that this agreement to submit to arbitration is valid and enforceable regardless of the nature of the controversy. The appellee contended that the arbitration clause divests the Civil Law Court of jurisdiction and that courts are constitutionally bound to uphold the sanctity of contracts, citing Article 25 of the 1986 Constitution.

The appellant filed its amended reply, reaffirming its allegations in the complaint and defending against the appellee's motion to dismiss. In its defense, the appellant generally argued that the arbitration agreement does not apply to its case because the appellee terminated the agreement long before dismantling the appellant's trucks and equipment. With a terminated and nonexistent agreement, no party previously bound by it can be compelled to remain bound; therefore, no party can be bound by a dispute resolution provision in a nonexistent agreement. The appellant requested the court to deny the motion and proceed to hear the main case, damages for wrong.

After a hearing on the motion, the trial court ruled, holding, among other things, that the wrongs complained of by the appellant were committed during the existence of the contract and should have been resolved and/or handled pursuant to the arbitration agreement. The court further held that even if the wrongs were committed after termination of the contract, they would still fall within the dispute resolution clause, as they were "in connection with" the agreement. The court, therefore, relying on Section 11.2 of the Civil Procedure Law, dismissed the appellant's complaint. The appellant entered an exception to the final ruling and announced an appeal to this Court of last resort.

The appellant, after completing the appeal process in accordance with the Civil Procedure Law Rev. Code: 1:51.4, this matter is now before this Court

to determine whether the trial judge correctly dismissed the appellant's complaint on the grounds that the dispute resolution or arbitration clause in the parties' agreement deprived the court of jurisdiction, despite the appellee's prior termination of the agreement.

We shall proceed to address this issue.

This Court begins its analysis by reaffirming the long-standing principle that arbitration agreements are valid and enforceable in Liberia. In *Emirates Co. v. Global Africa et al.*, 42 LLR 204 (2004), this Court held that agreements to submit disputes to arbitration "are valid, enforceable without regard to the justiciable character of the controversy, and irrevocable except upon such grounds as exist for the revocation of any contract." *Chicri Brothers, Inc. v. Isuzu Motors Overseas Distribution Corporation*, 40 LLR 128, 135 (2000); *Karen Maritime Ltd. v. Omar International, Inc.*, 42 LLR 216, 224 (2004). Article 25 of the 1986 Constitution likewise protects the sanctity of contracts.

In addressing the issue, it is worth mentioning that the parties duly entered into a valid contract that provides for arbitration as a mechanism for settlement in connection with the contract, stating: '....all disputes, controversy, or claims arising out of or in connection with this Agreement shall be finally settled under the Rules of Arbitration of the International Chamber of Commerce.' This Court states that Article 25 of our 1986 Constitution protects the sanctity of a contract, which declares that "obligations of contracts shall be guaranteed by the Republic and no laws shall be passed which might impair this right." This Court further elaborates on this principle regarding agreements to arbitrate, holding that such agreements are legally binding and enforceable against the maker. The parties also agreed that the appellee reserved the right to cancel or terminate the contract, and that the appellee did, in fact, terminate it while it was still unexpired.

It is the appellant's argument that the arbitration agreement does not apply to the appellant's case because the appellee terminated the agreement long before the appellee dismantled appellant's trucks and pieces of

equipment, and that, with a terminated and non-existent agreement, no party previously bound thereunder can have any burden to remain bound thereto. The trial court held that even if the wrongs were committed after termination of the contract, they would still fall within the dispute resolution clause, as they were "in connection with" the contract. We disagree with the trial judge. This Court agrees with the appellant that the arbitration provision was not an autonomous or stand-alone agreement. It was a clause embedded in the rental contract, and its validity and enforceability depended on the continued existence of the underlying agreement. When the appellee exercised its contractual right to terminate the rental agreement, the agreement and all its incidental provisions, including the arbitration clause ceased to have legal effect. Thus, once the contract was cancelled, no party could invoke the arbitration clause, as the contractual foundation upon which it depended had been extinguished. The arbitration clause did not survive the termination. The arbitration clause cannot outlive the agreement that gives rise to it. When the agreement is terminated, the arbitration clause is also terminated. *Civil Procedure Law Rev. Code 1:64.2.2(f)* provides that a party seeking to avoid arbitration shall show that the agreement has been revoked by either party. The arbitration clause is not an independent agreement absent the Rental Agreement.

The question the trial court fails to answer is: what will the appellant rely on if it wants to submit its grievances to arbitration in the face of the appellee's termination of the agreement that gave rise to the arbitration clause? To invoke a right, that right must exist. The appellant has alleged that after the termination of the agreement by the appellee, the appellee proceeded to seize and dismantle the appellant's trucks and pieces of equipment that were housed at the concession site of the appellee. Even assuming arguendo that the arbitration clause survived termination, this Court finds that the appellant's claims are not for breach of contract, but rather allegations of malicious destruction of property occurring outside the terms of the agreement and allegedly after it had been terminated. The appellant expressly stated before the trial court and before this Court that its action is not one for breach of contract. Instead, it alleges that the appellee wrongfully seized, dismantled, damaged, and destroyed its trucks and equipment after the agreement was terminated. These allegations do not

arise from any provision of the contract; they constitute tortious acts outside its four corners. The Court therefore holds that such claims cannot be compelled into arbitration under Clause 33, even if the agreement were still in force, because they are not disputes "arising out of or in connection with the agreement." These are allegations of independent wrongful conduct. Furthermore, the trial court did not address a fundamental question: upon what contractual instrument could either party rely to invoke arbitration after the appellee had terminated the agreement? The trial court's ruling did not reconcile with the statutory provision that an arbitration agreement becomes unenforceable upon revocation. It is legally untenable for the appellee to extinguish the contract and, at the same time, attempt to enforce a clause embedded therein. Equity will not permit a party to disavow and invoke portions of the same instrument selectively.

The Civil Procedure Law Rev. Code 1:64.2 provides that a party wanting to stay arbitration must show that: a) there is no agreement as described in section 64.1; or b) he is not a party to the agreement; or c) The controversy is not referable to arbitration; or d) the adverse party is not a party to the agreement; or e) the right to proceed to arbitration has been waived by the adverse party; or f) the agreement has been revoked by either party. In the instant case, the appellee, having exercised its absolute right to cancel the agreement giving rise to the arbitration clause, cannot thereafter rely on that agreement to invoke an arbitration provision to determine alleged wrongs committed by it. That the appellee having terminated the rental agreement which contained the arbitration clause, the appellee is barred by the Civil Procedure Law Rev. Code 1:64.2.2 (f) from invoking the arbitration clause. Furthermore, the appellant's allegations are all alleged to have been committed outside the parties' agreement.

WHEREFORE AND IN VIEW OF THE FOREGOING, the ruling of the Sixth Judicial Circuit, Civil Law Court, dismissing the appellant's complaint is hereby reversed, and the lower court ordered to proceed with the hearing. The Clerk of this Court is instructed to send a Mandate to the court below to resume jurisdiction, and give effect to this Judgment of this Opinion. Costs to abide final determination. AND IT IS HEREBY SO ORDERED.

WHEN THIS CASE WAS CALLED FOR HEARING, COUNSELORS
LAWENCE TOMAH, STEPHEN J.C.S. KAI AND MAMEE S. GONGBAH,
SR. APPEARED FOR THE APPELLANT. COUNSELLOR STEPHEN B.
DUNBAR, JR. APPEARED FOR THE APPELLEE.